



FREDERICK COUNTY GOVERNMENT
OFFICE OF THE COUNTY EXECUTIVE

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March 13, 2025

Arati Prabhakar, Director
Office of Science and Technology Policy
Executive Office of the President
Eisenhower Executive Office Building
1650 Pennsylvania Avenue
Washington, D.C. 20504

Dear Director Prabhakar,

As the County Executive of Frederick County, Maryland, I write to provide perspective on local issues related to artificial intelligence (AI) as the White House Office of Science and Technology Policy creates its Artificial Intelligence Action Plan. While developing this action plan, I urge the Office to not interfere with the authority of local governments to regulate the planning, zoning, and siting of data centers to protect our community's quality of life.

As recognized in the Request for Information and President Trump's Executive Order 14179 (Removing Barriers to American Leadership in Artificial Intelligence), the development of AI is and will continue to drive the demand and growth of the data center industry. Frederick County, located approximately 20 miles north of Northern Virginia's internet ecosystem, is currently the home of two small data centers and a 2,100-acre data center campus currently under development.

As our community's proximity to Loudon County makes it attractive to data center developers, I convened the Frederick County Data Centers Workgroup in June of 2023 to examine existing laws and make recommendations for regulating the rapidly evolving data center industry. At that time, I noted that Northern Virginia's experience highlighted that the data center industry could bring economic and tax benefits but also concerns about environmental sustainability, energy and water usage, noise, vibration, and impacts on quality of life.

The Frederick County Council is currently considering legislation to update our Critical Digital Infrastructure Ordinance to enact some of the recommendations of the Workgroup, such as siting criteria and noise regulation, and better reflect the realities of the evolving data center industry. It is crucially important for local governments to maintain local land use authority so we can effectively meet the needs of our communities.

Additionally, the significant energy consumption of data centers and artificial intelligence warrants close attention at all levels of government. This high energy use will add more stress to an already strained electric grid and could increase electricity rates. Energy infrastructure expansion to meet that demand could also result in significant costs to local governments and consumers. Frederick County is currently facing the impacts of a proposed transmission line, the Maryland Piedmont Reliability Project, to meet the energy needs of the data center industry in

Northern Virginia. The federal government should make efforts to mitigate the disruption that energy infrastructure projects cause in communities.

As Frederick County Executive, I urge the federal government to protect local governments' authority concerning planning, zoning, and siting of data centers and their campuses. To ensure these developing technologies continue to provide meaningful innovation and community benefits without threatening our quality of life, local governments must be able to responsibly site infrastructure, plan effectively, and address livability concerns surrounding data center development.

Thank you for the opportunity to provide this perspective.

Sincerely,

Jessica Fitzwater, County Executive